

Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, consideration of the fee award was deferred to the motion for final approval.

Counsel provides an estimated lodestar fee of \$85,157.59. This is based on a total of 111.5 hours, with hourly rates ranging from \$600-950.00. The amount of fees billed exceed the amount requested. No adjustment is necessary. The Court finds that \$100,000 for class counsel fees are reasonable and approved. Litigation costs of \$24,029.32 are reasonable and are approved. The Court finds that the amount of \$5,000 to ILYM for its settlement administration expenses is reasonable. The Court finds that Class Representative Service payment of \$7,500 is reasonable and is approved. The proposed payment to LWDA of \$6,500 is reasonable and approved. The PAGA Allocation to Aggrieved Employees in the amount of \$3,500 is reasonable and approved.

The Court finds that the moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval. Notice to the class was adequately provided.

Ruling

1. The motion is **granted**. The Court will execute the proposed order lodged on April 7, 2026. The Court sets a compliance hearing dates regarding distribution as set forth in the proposed order.
2. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall be set by the Clerk of the Court in due course (not later than ninety (90) days from the date of this hearing). Five percent (5%) of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
3. No appearance is required at the hearing on March 4, 2026.

18. 9:00 AM CASE NUMBER: C25-01464
CASE NAME: THREEZ INVESTMENTS, INC. VS. AMAN POHYAR
***HEARING ON MOTION IN RE: TO DISMISS PLAINTIFF'S COMPLAINT**
FILED BY: POHYAR, AMAN
TENTATIVE RULING:

Defendant Aman Pohyar's Motion to Dismiss is **denied**.

Background

Plaintiff Threez Investments, Inc. (Threez) filed this action against Defendant Aman Pohyar (Pohyar) arising from the purchase and sale of a single-family home at 8053 Kelok Way in Clayton.

In 2017, the property was listed on the MLS for \$199,500. The public remarks on the listing said the house was "not in livable condition per the City of Clayton" and that soil movement in the area needed to be corrected. On July 31, 2017, the City of Clayton issued a "red tag" notice declaring the house uninhabitable because it is located on the top of a "slow-moving landslide" affecting the front

and side yards and the public street. In October 2017, Pohyar bought the property for \$250,000. (See Complaint filed on May 27, 2025, ¶¶ 7-9.)

In September 2023, Pohyar contracted to sell the property to Adelko, Inc. for \$850,000. Paragraph 6 of that contract warranted that the "Seller is not aware of any unrecorded liens, leases, or other encumbrances affecting the Property." On or about October 16, 2023, Adelko assigned the contract to Threez, which ended up purchasing the property for \$855,000. Before closing, Threez was told that the property needed about \$56,000 in foundation repairs but not that the house had been red-tagged or declared uninhabitable. After closing, Threez's experts concluded that multiple underground piers were needed to stabilize the soil, at a cost over \$800,000. (Complaint, ¶¶ 10-14.)

When confronted, Pohyar allegedly said the red tag was "fake and fraud" committed by a city engineer trying to scare off buyers so the engineer could buy the property himself. Threez uses that statement to argue Pohyar knew about the red tag. Threez also points to the \$600,000 difference between Pohyar's 2017 purchase price and the 2023 sale price as circumstantial evidence that Pohyar knew the property was distressed when he bought and sold it. On March 26, 2025, Threez sent Pohyar a demand for rescission. (Complaint, ¶¶ 14, 59, Exh. 6.)

Threez pleads six causes of action against Pohyar: (1) intentional misrepresentation; (2) negligent misrepresentation; (3) negligence; (4) non-disclosure; (5) rescission based on fraud; and (6) declaratory relief. The fraud theory is that Pohyar knew the property had been red-tagged as uninhabitable due to soil movement, warranted in Paragraph 6 of the sales contract that he was unaware of any "encumbrances," and concealed the red tag to induce Threez to buy the property for significantly more than it was worth.

Pohyar filed the instant "Motion to Dismiss the Plaintiffs' Complaint..." on December 12, 2025, in pro per. Threez opposed on March 10, 2026. Pohyar replied on April 7, 2026.

Legal Standard

In California, a motion to dismiss is treated as a general demurrer. (*Citizens for Parental Rights v. San Mateo Cty. Bd. of Educ.* (1975) 51 Cal. App. 3d 1, 38 ["The motion to dismiss is, as we have noted, the legal equivalent of a general demurrer."]; *ZL Techs., Inc. v. Does 1-7* (2017) 13 Cal. App. 5th 603, 613 n.4 ["In California, a demurrer serves the purpose of a motion to dismiss."].)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).)

Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Analysis

Pohyar contends he bought the property in 2017 after seeing no major damage and only learned of the red tag after closing, when the City of Clayton's contracted engineer, Scott Almond, handed him a one-page flyer Pohyar claims was fake: unsigned, unstamped, with no underlying city record of who discovered the damage or when. He alleges the engineer demanded \$10,000 to "review" the matter and was fired within 15 days after Pohyar complained to the Mayor. Pohyar's engineers found only a three-inch settlement in the front of the living room caused by poor drainage, not a landslide. He spent roughly \$285,000 over six years maintaining the property. When he sold in 2023, his buyer was Adelko, Inc., not Threex, and he gave Adelko all his engineering and soil reports along with a copy of the city's red tag notice during negotiations. The sale was "as is" for \$825,000. Pohyar points to the IRS Form 1099-S, noting other documents inconsistently show \$850,000 or \$855,000. He says he never dealt with Threex, did not know Threex existed until receiving the demand letter two years later, and that any failure to pass disclosures along to Threex is between Threex and Adelko. He argues the complaint is uncertain and fails to state a cause of action.

Threex responds that the motion is procedurally deficient because a demurrer must be filed within 30 days of service, but Pohyar was served on June 7, 2025, answered on June 23, 2025, and did not file this motion until December 12, 2025. Threex adds that Pohyar also failed to meet and confer as required by statute. On the merits, Threex argues the motion improperly relies on disputed facts outside the pleadings, including Pohyar's claims that the red tag is fake and that he gave Adelko all the reports. Threex argues the complaint adequately pleads fraud and concealment because California imposes both common law and statutory duties on sellers to disclose material facts affecting the value or desirability of real property, and the red tag and habitability issues are material as a matter of law. Threex argues the "as is" sale does not shield Pohyar from liability for fraud, and Pohyar's misrepresentations were made with the intent to induce reliance by subsequent purchasers like Threex.

Pohyar's reply asserts for the first time that he recently saw a real estate advertisement showing the property was resold for \$1,337,767, which shows that Threex made a substantial profit and brought this case to harass Pohyar.

As an initial matter, Pohyar's argument that the complaint is uncertain, ambiguous, or unintelligible is not supported. The complaint identifies the parties, the property, the contract, the alleged fraud, and the alleged damages. Pohyar answered the complaint and filed this motion, which shows he understood the allegations well enough to respond.

The motion also fails for three reasons. First, it is untimely as a demurrer. A demurrer must be filed within 30 days of service. (Code Civ. Proc., § 430.40.) Pohyar was served on June 7, 2025, and answered on June 23, 2025. He did not file this motion until December 12, 2025. The Court

nonetheless addresses the merits because the same argument can be raised as a nonstatutory motion for judgment on the pleadings. Second, Pohyar treats this motion as if the Court were weighing evidence. That is not the purpose of a demurrer. The Court does not decide factual disputes at this stage and accepts the allegations in the complaint as true. Third, the complaint alleges facts that, if taken as true, are enough to support each cause of action, as explained below.

Misrepresentation (First and Second Causes of Action)

The elements of intentional misrepresentation are (1) a misrepresentation, (2) with knowledge of its falsity, (3) with intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166.) The elements of negligent misrepresentation are nearly identical, with the second element requiring the absence of reasonable grounds for believing the representation true instead of knowledge of its falsity. (*Id.*)

The first cause of action pleads each element. The complaint alleges Pohyar represented in Paragraph 6 of the September 2023 sales contract that he was not aware of any unrecorded liens, leases, or other encumbrances affecting the property. The complaint alleges Pohyar knew that representation was false because he later told Threez the red tag was "fake and fraud" committed by a city engineer, which shows he knew the red tag existed. The complaint alleges Pohyar made the representation to induce Threez to enter into the purchase agreement and close escrow at a price significantly above fair market value. The complaint alleges Threez was ignorant of the falsity, relied on the representation, and that reliance was reasonable given Pohyar's superior knowledge of the property. The complaint alleges damages over \$855,000 plus remediation costs exceeding \$800,000.

The second cause of action pleads the same facts and adequately alleges that Pohyar lacked reasonable grounds for believing his statements to be true. The complaint alleges Pohyar made the Paragraph 6 representation negligently or recklessly without regard for its truth. Given the public 2017 MLS listing flagging the property as uninhabitable, the red tag, and Pohyar's ownership of the property since 2017, the complaint adequately alleges he had no reasonable basis to claim ignorance of facts affecting habitability.

As noted earlier, a demurrer is not the stage at which the Court weighs competing evidence. The Court accepts the allegations of the complaint as true and cannot consider Pohyar's claims about what he disclosed, whether the red tag was genuine, or any other factual disputes outside the pleading.

Pohyar also argues the "as is" nature of the sale bars liability. The Court can take judicial notice of the purchase and sale agreement, including its "as is" language, but that provision does not assist him at this stage. "As is" language in a real estate sales contract does not shield a seller or his agent from liability for fraud. "Generally speaking, such a provision means that the buyer takes the property in the condition visible to or observable by him. [Citation.] Where the seller actively misrepresents the then condition of the property [citations] or fails to disclose the true facts of its condition not within the buyer's reach and affecting the value or desirability of the property, an 'as is' provision is ineffective to relieve the seller of either his 'affirmative' or 'negative' fraud.... To enlarge the meaning of such a provision so as to make it operative against all charges of fraud would be to permit the seller to contract against his own fraud contrary to ... law. (Civ. Code, § 1668.)" (*Lingsch v. Savage* (1963)

213 Cal.App.2d 729, 742.)

Here, given the allegations that Pohyar failed to disclose the red tag and the soil movement that made the property uninhabitable, and that Threeez did not know and could not reasonably have discovered those conditions, the Court rejects the argument that the “as is” provision defeats the claims.

Pohyar also argues he cannot be liable because he sold the property to Adelko rather than directly to Threeez. The complaint alleges that Adelko assigned the purchase contract to Threeez, and that Pohyar’s representations and omissions were intended to induce reliance by subsequent purchasers, including Threeez. That is sufficient at the pleading stage.

Negligence and Non-Disclosure (Third and Fourth Causes of Action)

A real estate seller has both a common law and statutory duty of disclosure. The court in *Shapiro v. Sutherland* (1998) 64 Cal.App.4th 1534, 1544, outlined the common law duty, explaining: "In the context of a real estate transaction, '[i]t is now settled in California that where the seller knows of facts materially affecting the value or desirability of the property ... and also knows that such facts are not known to, or within the reach of the diligent attention and observation of the buyer, the seller is under a duty to disclose them to the buyer. [Citations.] [Citations.] Undisclosed facts are material if they would have a significant and measurable effect on market value. [Citation.]" A seller's duty of disclosure is limited to material facts; once the essential facts are disclosed a seller is not under a duty to provide details that would merely serve to elaborate on the disclosed facts. (*Pagano v. Krohn* (1997) 60 Cal.App.4th 1, 8-9.) Where a seller fails to disclose a material fact, he may be subject to liability "for mere nondisclosure since his conduct in the transaction amounts to a representation of the nonexistence of the facts which he has failed to disclose [citation]." (*Lingsch v. Savage, supra*, 213 Cal.App.2d at 736.)

The third and fourth causes of action rest on the same facts. Both allege Pohyar owed a duty to disclose material facts about the property, breached that duty by failing to disclose the red tag and soil movement, and caused damages.

The complaint adequately pleads each element. The complaint alleges Pohyar knew the property had been red tagged and suffered from soil movement, that he did not disclose those facts to Threeez, that Threeez did not know and could not reasonably have discovered them, that Pohyar knew Threeez did not know, that the conditions affected the value of the property, and that Threeez was harmed as a result. Pohyar's contrary factual assertions cannot be considered on demurrer.

Rescission and Declaratory Relief (Fifth and Sixth Causes of Action)

Rescission is a remedy governed by Civil Code § 1689, which allows rescission for mistake, duress, fraud, undue influence, failure of consideration, void consideration, illegality, and public interest. (*Wong v. Stoler* (2015) 237 Cal.App.4th 1375, 1385.) Threeez seeks rescission based on fraud. The complaint alleges Pohyar represented in Paragraph 6 of the sales contract that he was unaware of any encumbrances, that the representation was knowingly false because Pohyar knew the property had been red tagged and suffered from soil movement, that the representation induced Threeez to

purchase the property well above fair market value, that Threez justifiably relied to its detriment, and that Threez gave notice of rescission on March 26, 2025. These allegations support rescission.

To qualify for declaratory relief, a party must allege (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations. (Code Civ. Proc. § 1060; *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.) The complaint alleges an actual controversy between Threez and Pohyar concerning their respective rights and duties under the purchase agreement and the property and seeks a judicial declaration of those rights and duties.

19. 9:00 AM CASE NUMBER: C25-02227
CASE NAME: EMMA WILLS VS. LYONS MAGNUS LLC
***HEARING ON MOTION IN RE: TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: WILLIAM D. MARLER**
FILED BY: WILLS, EMMA
TENTATIVE RULING:

The hearing on this motion is vacated. On April 16, 2026, Plaintiff filed a Request for Dismissal of the entire action with prejudice. No appearance is required on April 29, 2026.

20. 9:00 AM CASE NUMBER: C25-03523
CASE NAME: VILSON MANUSYANTS VS. MERCEDES-BENZ USA, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MERCEDES-BENZ USA, LLC,
TENTATIVE RULING:

Defendant Mercedes-Benz USA, LLC's Motion to Compel Binding Arbitration and Motion to Stay filed on January 5, 2026 is unopposed by Plaintiff Vilson Manusyants. Accordingly, the Motion is granted. This matter is stayed pending arbitration. The Court will execute the proposed order lodged on January 5, 2026. No appearance is necessary at the April 29, 2026 hearing. The Court sets a Case Management Conference for October 29, 2026 at 8:30 a.m. to follow-up on the status of arbitration. The Parties are ordered to file a case management conference statement advising the Court of the result of the arbitration. The parties may stipulate to continue this CMC if the arbitration proceedings have not concluded prior to October 29, 2026.

21. 9:00 AM CASE NUMBER: MSC19-01155
CASE NAME: JOANN BRADFORD VS. CHEVRON U.S.A. INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY:
TENTATIVE RULING:

Summary

Plaintiffs Joann Bradford, Liza Mosqueriola and Jason Rohrback ("Plaintiffs") move for preliminary approval of their class action and PAGA settlement with Defendant Liberty Chevron USA Inc. ("Defendant"). This Motion is granted as set forth herein. No appearance is required at the hearing on April 29, 2026.